# DEED OF RESTRICTIONS

**I.HOMEOWNER'S ASSOCIATION**

**a)** The **PURCHASER** hereby accept/s unconditional membership in **THE LAGUNA HILLS** composed of owner, vendees and residents of the subdivision. It is an integral part of the development scheme of Fil-Estate Management, Inc., (hereinafter called the **DEVELOPER**) to initiate the formation of the Homeowner's Association (hereinafter called the (**ASSOCIATION**) among its lot buyers in the said subdivision of which this lot is part for the protection of their rights and promotion of their general welfare. The **DEVELOPER** intends to assign to the said **ASSOCIATION** some of its rights under this contract, like those pertaining to building restrictions, for a more uniform and efficient enforcement thereof.

b) The **PURCHASER** of this lot shall automatically become a member of the **ASSOCIATION** and agrees to abide by all the rules and regulations promulgated by it in the interest of sanitation, security and the general welfare of the community, including the imposition of fees to fund such services. The **PURCHASER** cannot withdraw his membership from the **ASSOCIATION** unless he sells or parts with his interests in the lad and improvement thereon, if any. In such a case, however, the **PURCHASER's** successor-in-interest shall be bound by this condition.

c) The **PURCHASER** agrees that his unsatisfied obligations in favor of the **ASSOCIATION** shall constitute a lien on the property herein sold and/or on any of his interest therein, inferior only to the lien of the **DEVELOPER** on the same.

d) While absolute ownership of the facilities and utilities for water supply, street lighting, maintenance of road and drainage and such other facilities and utilities that may be put up for the promotion of general welfare, health, safety and morals of the members of the **ASSOCIATION** shall continue to remain in the name of the **DEVELOPER**, the **ASSOCIATION** shall conduct the affairs and activities of the **ASSOCIATION** related with the proper operation, maintenance, regulation, enforcement of the **ASSOCIATION's** rules and regulations, as well as the provisions of this Restriction and shall manage and maintain the facilities before mentioned subject however to the control and supervision of the **DEVELOPER,** it being expressly stipulated that the imposition and adjustment of fees, charges, dues and assessments of water and temporary electrical facilities shall exclusively belong to the **DEVELOPER**, and it being clearly understood that the **DEVELOPER** may in due time, transfer after proper arrangements, ownership of such facilities to the **ASSOCIATION** which shall be bound to accept the same.

## II. USE OF LOTS

a) This lot shall be used exclusively for a single residential building and shall not be used for immoral trade of activity. **PURCHASER** shall under no circumstance use or allow to be used the lot as a right-of-way or access to any adjoining property outside the subdivision.

b) This lot shall not be subdivided; however, two or more adjacent lots owned by one owner may be consolidated into one lot, provided it shall not thereafter be subdivided. The consolidation plans shall be approved by the **DEVELOPER** and the proper government office or agency and duly registered in the proper office of the Register of Deeds.

c) Residential lots are subject to an easement or setback from the property line to the building line in the following manner:

**Interior Lots**

Both sides – 2.00 meters from building line
Rear – 2.00 meters from the building line
Front – 4.00 meters from building line

**Corner Lots**

Rear – 2.00 meters from the building line
One side – 2.00 meters from the building line
Sides from the street – 3.00 meters from the building line

The easements are required for the purpose of drainage, sewage, water and other public utility facilities which may be necessary and desirable and also for ventilation purposes. The **PURCHASER** or occupant shall permit free access thereto by the authorized representatives of the **DEVELOPER** and/or public utility entities for the purpose of which of which the easement is created.

d) The **PURCHASER** agrees to admit in the premises, representatives of the **DEVELOPER** to carry into effect the purposes for which the easement is creaed, to inspect and relocate monuments and/or to admit representatives of like facilities.

e) No part of the property shall be used or maintained as dumping for rubbish, garbage or other materials to aggregates

f) No commercial or advertising signs may be placed, constructed or entered on this lot.

g) No animals or fowl shall be maintained or kept on the lot except pets. The term “pets” means dogs, cats, and chickens not in commercial quantities.

h) The grass of this lot shall at all times be kept cut and trimmed to reduce fire hazard of the property. For this purpose, the **DEVELOPER** is permitted to cut and trim the grass at any time such grass which grows beyond two (2) feet from the soil and the **PURCHASER** is obligated to pay the cost therefore with interest at one percent (1%) per month. The word **PURCHASER** as herein used shall include any person in whose name the certificate of title for this lot has been issued or to a lot buyer who has been issued a contract to sell. For maintenance of vacant lots, **PURCHASER** shall pay a maintenance fee of P5.00 per square meter annually, which amount shall be incorporated into **PURCHASER’s** account and shall be subject to change without prior notice.

## III. BUILDING AND ARCHITECTURE

a) For residential lots, the **PURCHASER** shall only be allowed to construct a single family residential building at a cost of not less than **Php. 5 million** under present-day values except that separate servants quarters may be build thereon. This amount may be adjusted from time to time by the **DEVELOPER.**

b) Buildings shall not be higher than ten (10) meters measured vertically from the highest projection of the building proper to the highest original ground level of the lot.

c) The plans and specification of the building or any subsequent additions thereto, constructed within the property shall comply with all existing laws, ordinances and/or regulations governing the establishments of residence and must be subject to the approval by the **DEVELOPER/ASSOCIATION**, thirty (30) days prior to the start of the construction. Any construction commenced without approval of the plans thereof by the **DEVELOPER** and the **ASSOCIATION** may be stopped and all materials for use in the construction thereof may be refused entry in the subdivision.

d) No house plan shall be approved unless **PURCHASER** shall have paid a construction deposit to the **DEVELOPER/ASSOCIATION** in the sum of **TWO HUNDRED THOUSAND PESOS**. The amount may be adjusted from time to time by the **DEVELOPER** without prior notice. Said deposit shall be refunded to the **PURCHASER** after completion minus whatever damage **PURCHASER** may have caused to any of the subdivision facilities and after the **DEVELOPER** shall have been satisfied that all restrictions embodied herein shall have been complied with by the **PURCHASER**. In case of violation hereof, the construction deposit shall be forfeited without prejudice to such other legal action the **DEVELOPER** or the **ASSOCIATION** may pursue.

e) In the event the **PURCHASER** constructs his house on a wrong lot, the **PURCHASER** shall immediately remove said construction at his expense; otherwise, the **DEVELOPER** shall immediately remove the same at any **PURCHASER's** expense without the necessity of a court order and without incurring any criminal and/or civil liability whatsoever on the part of the corporation or its officers and employees.

f) No temporary buildings, shack, barn or other structures shall be erected. Adjacent lots may be used for dumping of materials or stockpile for construction provided said lots are immediately cleaned after construction of the **PURCHASER's** house. In case of failure of the **PURCHASER** to do so, the **DEVELOPER** shall do the same but the cost thereof shall b e deducted from the **PURCHASER's** construction deposit.

g) **PURCHASER** shall not be allowed to mix concrete directly on the subdivision's concrete roads or paved sidewalks.

h) No soil, stones or gravel shall be taken from this parcel of land or from any other lot belonging to the **DEVELOPER**.

i) No trees in the lot premises shall be cut without the permission of the **DEVELOPER** and the local authorities concerned.

## IV. UTILITIES/FACILITIES

a) The **PURCHASER** should first verify the actual location of underground utilities prior to planning should secure all the necessary permits before tapping any utility line. Booster pump directly connected to the water main is not allowed. Sewage disposal must be connected only to the septic tank which the **PURCHASER** will build. The plans of this tank will be subject to the approval of the **DEVELOPER**. All drainage pipes shall be connected to the subdivision drainage system. No installation of any drainage line shall be allowed outside the property without the written approval of the **DEVELOPER.** Boring or cutting through the concrete curb and gutter is not allowed.

b) Since the **DEVELOPER** shall be providing additional facilities in the subdivision like a multi-purpose clubhouse, basketball court and tennis court, **PURCHASER** agrees to pay a maintenance fee of Php. **1.80/sqm** per month to cover the cost of maintenance thereof subject to adjustment from time to time without prior notice. Those who fail or refuse to pay the said

maintenance fee shall not be allowed to make use of these facilities. Their exclusion from their use shall not however exempt them from paying the aforesaid fees as the same shall be mandatory.

**V. WALL/FENCE**

a) The fence or wall shall not be more than two (2) meters in height from the sidewalk level. No fencing shall be made prior to construction of one's house or building. Provided further that only iron grill fences will be allowed on the front portion of the lot facing any subdivision road. Hollow blocks or adobe walls will only be permitted on the rear and two (2) sides of the lot. **PURCHASERS** of lots along the perimeter of the subdivision are not allowed to make any open-foregoing restrictions, requirements and conditions are required to be observed by the **PURCHASER** or his successor.

**VI. VEHICULAR/PEDISTRIAN ENTRANCES**

a) No vehicular entrances or exits shall be allowed along the curves at street intersections. No vehicular or pedestrian entrance or exit shall be allowed on lot boundaries adjoining the subdivision perimeters.

b) Any road, street or highway leading to this lot may be temporarily or permanently closed by the **DEVELOPER** in the interest of good order, sanitation, security and general welfare of the community.

**VII. TERMS OF RESTRICTIONS**

All the restrictions, easements, reservations and conditions enumerated herein shall be valid and binding, and shall run for a period of **TWENTY-FIVE (25)** years from and after **January 1, 1995.**

**ENFORCEMENT OF RESTRICTIONS**

a) The **DEVELOPER** or the **ASSOCIATION** and their duty authorized representatives, shall have the right during reasonable hours of the day and upon due notice to enter and inspect any building constructed on the lot to ascertain compliance with all the restrictions herein. Compliance with the said restrictions, reservations, easements and conditions may be enjoined and/or enforced by court action, by the **DEVELOPER** and/or the **ASSOCIATION** or by any member n good standing of the Association.

b) Any inaction, silence, delay or tolerance of any said parties with respect to violation of any of the covenants, conditions and restrictions hereof committed by the **PURCHASER** of this lot or by any lot owners in the vicinity hereof shall not bar or stop any of said parties from instituting an action to enforce the same provided that the outcome of said action shall not affect the one who is not made a party to the suit.

c) The **PURCHASER** hereby makes manifest and represents that he has investigated the property subject matter of this contract and that he has found no squatters or adverse occupants whatsoever thereon and is fully satisfied with the area, terrain and contour of the lot, actual condition of the lot, and the area in general.

d) The **PURCHASER** agrees not to sell, cede, encumber, transfer, or in any manner, do any act which will violate this Deed of Restrictions without the prior written approval of the **DEVELOPER** and until all stipulations of this Deed shall have been fulfilled. The **PURCHASER** binds himself not to alter, remove, displace or in any way interfere with any monument or other evidence of boundary upon said premises, not to cut or destroy or in any other manner cause any waste or damage to or upon said premises or to allow others the commission of any of the aforesaid acts, without previous written approval from the **DEVELOPER.**

**IX. INTERPRETATION OF RESTRICTIONS**

Where there appears to be a conflict in the interpretation of these restrictions, the most stringent interpretation shall be adopted.

**X. VALIDITY OF COVENANTS**

In the event of validation of any of the above covenants or any part thereof by written directive of the **DEVELOPER** or by court order or judgment, the other provisions or portion shall not be affected, and shall remain in full force and effect.

**ADDENDUM**

*It is hereby agreed, that the rules on all restriction easement, reservation and condition provider in Section VII of Terms of restriction which will expire on January 1, 2020. Shall be extended until the Board amend of new rules on terms of restriction.*

IN WITNESS WHEREOF, the said parties hereunto set their hands this . . . . . day of . . . . . , . . . . . in Pansol, Calamba City, Philippines.

.....
Purchaser

By:

.....
Purchaser's Spouse

SIGNED IN THE PRESENCE OF

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